

26STCP02345 26STCP02345

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C08%2F25%2F2026

Source SHA-256: f80750b9071c5cebad998864b965d3d9f054a5b0e95cf0e2ea5ccca7e692be4e

Case Number: 26STCP02345 Hearing Date: August 25, 2026 Dept: 510

No. 10 - Sheriff Civilian Oversight

Commission v. Los Angeles County Sheriff's Department

Motions for Leave to Intervene by Proposed Intervenors Association for Los Angeles Deputy Sheriffs and Professional Peace Officers Association

Proposed intervenors Association for Los Angeles Deputy

Sheriffs ("ALADS") and Professional Peace Officers Association ("PPOA") each

move for leave to intervene in this proceeding.[1] Petitioner Sheriff Civilian Oversight Commission ("COC") filed a combined opposition to the motions. Respondent County of Los Angeles filed a notice of non-opposition. Because the motions contain significant overlap in issues, the Court will address them together.

Overview

As part of its oversight role, Petitioner seeks records from Respondent regarding three deputy-involved use-of-force incidents, one involving a person's death. Respondent has refused to provide those records, so Petitioner issued three subpoenas. Respondent still refused to provide those records, so Petitioner filed this special proceeding, asking the Court to enforce the subpoenas by ordering Respondent's compliance.

In most circumstances, this type of petition would be routine and non-controversial. There are at least two aspects of this situation, though, that render this matter anything but routine.

First, the Office of County Counsel represents or represented both sides of the dispute, presenting an obvious conflict of interest. While

County Counsel has retained outside lawyers to represent the Respondent, it has not done so for Petitioner. Instead, it has publicly chastised Petitioner for acting without County Counsel, a shocking breach of an attorney's ethical duties to a client. Compounding this apparent ethical violation is that Respondent's outside counsel challenges Petitioner's ability to pursue this case because it is being done without County Counsel's involvement. These issues will be addressed in more detail at the September 17, 2026 hearing on Respondent's demurrer and an order to show cause hearing, detailed below, on the same date.

Second, while this matter relates only to Petitioner's efforts to enforce subpoenas, two law enforcement unions move to intervene in this matter to seek separate relief. Specifically, PPOA asks to intervene in this proceeding so it can (a) obtain declaratory relief that the Petition is barred because the unions and the County have an enforceable settlement agreement that purportedly binds Petitioner, (b) confirm the subpoenas have been "rescinded" based on the same settlement agreement, and (c) seek an injunction against Petitioner. Similarly, and based on the same factual premises, ALADS seeks to intervene to obtain (a) a writ of mandate to enforce the settlement agreement, (b) declaratory relief regarding the settlement agreement, and an injunction enjoining Respondent from complying with the subpoenas. (See PPOA Proposed Complaint-in-Intervention; ALADS Proposed Complaint-in-Intervention.) ALADS alternatively proposes to file an Answer-in-Intervention that addresses the allegations in the Petition as asserted "affirmative defenses" as if this matter was ordinary litigation.

Request for Judicial Notice

ALADS requests the Court take judicial notice of four pleadings from Los Angeles County Sheriff Robert G. Luna v. Los Angeles County Sheriff Civilian Oversight Commission (Case No. 25STCV08055). These documents are court records and subject to judicial notice under Evidence Code section 452(d).

ALADS's request for judicial notice is granted.

PPOA requests the Court take judicial notice of certain provisions of the County Employee Relations Ordinance and the Meyers-Milias-Brown Act. These provisions are subject to judicial notice under Evidence Code section 452(a) and (b).

PPOA also requests the Court take judicial notice of Exhibits

A-C, which contain the Los Angeles Employee Relations Commission's ("ERCOM") decisions and orders (Exs. A-B) and an unfair labor practice charge filed by PPOA with ERCOM (Exs. C). These are official acts subject to judicial notice under Evidence Code section 452(c).

PPOA also requests the Court take judicial notice of Exhibits

D-I, which include the COC's public meeting agenda (Ex. D), letters from County Counsel and the COC to the Court of Appeal in another proceeding (Exs. E-G), County Counsel's public statement condemning "grandstanding and divisiveness" by the COC (Ex. H), and the Court of Appeal's denial of the COC's application to file an amicus brief in the other proceeding (Ex. I). Exhibits D-H are subject to judicial notice under Evidence Code section 452(c). Exhibit I is subject to judicial notice under Evidence Code section 452(d).

PPOA's request for judicial notice is granted.

Background

The subject matter of this case initially came before this

Court in March 2025 in Los Angeles County Sheriff Robert G. Luna v. Los Angeles County Sheriff Civilian Oversight Commission ("Luna v. COC").

There, Sheriff Robert Luna filed a complaint alleging one cause of action for declaratory relief, seeking guidance from the Court as to whether he must legally provide certain peace officer records to the COC under then-existing law. ALADS and PPOA, two unions representing peace officers, moved to intervene in the action to protect their members' interests in their confidential personnel records. The Court granted the motions. In December 2025, Luna dismissed his complaint after passage of AB 847, which amended the Government Code and Penal Code to explicitly allow sheriff oversight commissions to access peace officer records. (See Pen. Code, § 832.7; Gov't Code, § 25303.7(a)(3).)

In June 2026, the COC initiated the instant action by filing

a petition for order to show cause re: refusal by Respondent to comply with the same three subpoenas duces tecum at issue in the prior litigation. The Petition, made pursuant to Government Code section 25303.7(b)(3)(A)-(B), requests the Court issue an order directing Respondent to appear and show cause why, following the enactment of AB 847, it should not be ordered to comply with the three subpoenas. ALADS and PPOA now wish to intervene in this action.

Mandatory Intervention

ALADS and PPOA are not entitled to intervene in this action as of right. “The court shall, upon timely application,” permit intervention if “[t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person’s ability to protect that interest, unless that person’s interest is adequately represented by one or more of the existing parties.” (CCP § 387(d)(1)(B).)

Unlike in *Luna v. COC*, ALADS and PPOA’s interests are adequately represented by Respondent. In the prior case, Luna sought declaratory relief to seek the Court’s guidance on whether he must comply with certain subpoenas for personnel records. Due to the lack of legal certainty at the time, Luna naturally had different interests from ALADS and PPOA: Luna sought merely to comply with his obligations under the law, whatever they may be, while ALADS and PPOA sought to protect their members’ interests by opposing the subpoenas. In contrast, in this case the COC seeks enforcement of the same subpoenas, but the County and the unions are united in their effort to block enforcement and jointly seek adjudication regarding the enforceability of a settlement agreement between the County and the unions that would prevent enforcement. As framed by Respondent and the unions, they have the same interest: to prevent the COC from obtaining the documents sought in the subpoenas based not on the law that the COC relies on, but due to a separate contract entered into between Respondent and the unions.

Respondent and the unions’ overlapping interests are evidenced by the identical arguments raised in their briefs. The County and the unions both argue that (1) the COC had no authority to bring its Petition because it did not receive authorization from County Counsel; and (2) the Petition was filed before exhaustion of meet and confer discussions between the County and unions regarding the effects of AB 847, efforts required only by the settlement agreement. (Compare ALADS and PPOA’s Motions for Leave to Intervene with County’s Demurrer to Petition filed 7/27/26.) In addition, the County and the unions want the Court to enforce their settlement agreement and summarily dismiss this proceeding.

The Court finds that Respondent adequately represents the unions’ interests as outlined in their motions to intervene. As such, ALADS and PPOA are not entitled to mandatory intervention.

Permissive Intervention

The Court also does not find permissive intervention necessary. “The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (CCP § 387(d)(2).) “For permissive intervention three factors are paramount: the intervenor must have a direct interest in the lawsuit, the intervenor must not enlarge the issues raised by the original parties and the intervenor must not tread on the rights of the original parties to conduct their own lawsuit.” (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600 [emphasis added].) “Whether in a particular case intervention should be allowed ‘is best determined by a consideration of the facts of that case’ [citation] and the decision is ordinarily left to the sound discretion of the trial court.” (Fireman’s Fund Ins. Co. v. Gerlach (1976) 56 Cal.App.3d 299, 302.)

Here, the single issue raised by the Petition – whether the Court should enforce three subpoenas – would be substantially enlarged if ALADS and PPOA were permitted to intervene. ALADS and PPOA’s proposed complaints-in-intervention reveal several requests for relief that expand far beyond the focus of the Petition. For example, ALADS’s prayer for relief features requests for (1) a writ of mandate directing the County to meet and confer with the unions and comply with the settlement agreement, and the COC to obtain approval of the Board of Supervisors and County Counsel to take any further legal action; (2) declaratory relief with respect to the parties’ obligations to complete the meet and confer process and the rescission of the subpoenas; and (3) injunctive relief enjoining Respondent from complying with the subpoenas. PPOA requests similar relief. These requests run far afield from the narrow enforcement issue raised in the Petition and would improperly enlarge the issues before the Court. In exercising its discretion, the Court will not permit ALADS and PPOA to intervene in this action.

Order to Show Cause re: Potential Conflict of Interest

The Court notes that the Office of County Counsel appears to have a facial conflict of interest in this case. Under the Los Angeles County Charter, County Counsel is to have “exclusive charge and control of all civil actions and proceedings in which the

County or any officer thereof[] is concerned or is a party.” (L.A. Cnty Charter art. VI, § 21.) In the prior litigation, where the Sheriff sued the COC for a declaration of rights, County Counsel obtained outside independent counsel for both sides. Because the two county bodies had a dispute, that decision made eminent sense.

Here, in contrast, there

is no indication from the Petition or the materials of which the Court has taken judicial notice why County Counsel elected not to obtain independent counsel for the COC once the now-public dispute arose with its client. Instead, County Counsel openly condemned the COC – its client – about its efforts to submit an amicus brief in another action and revealed attorney-client communications in the process. (See PPOA RJN, Ex. E.) County Counsel also condemned, in a press release, what it called “grandstanding and divisiveness” by the COC, its client. (Id., Ex. H.) By doing so publicly in a matter contested simultaneously with the present dispute, County Counsel has provided ammunition used by Respondent and the proposed intervenors to attack the Petition on the grounds that County Counsel is not involved in this case and that the COC is thus acting ultra vires. By failing or refusing to provide independent counsel for the COC to pursue this action, County Counsel has worked adverse to its client to endanger its client’s ability to obtain the relief it seeks.

The Court cannot ignore

the serious issues raised by such conduct. For this reason, the Court sets an order to show cause regarding whether County Counsel has a conflict of interest, and should be ordered to appoint independent conflict counsel for the COC, by (a) purporting to represent both Petitioner and Respondent in negotiations with the unions regarding enforceability of the subpoenas; (b) failing or refusing to procure independent counsel for Petitioner for this case once a conflict became apparent; (c) retaining outside counsel for Respondent to challenge Petitioner’s efforts to enforce the subpoenas based, in part, on County Counsel’s own unwillingness to provide independent counsel for the COC; (d) entering into a settlement agreement that purported to invalidate the subpoenas without its client’s (Petitioner) knowledge or consent; and (e) publicly challenging its client’s (Petitioner) conduct. This conduct raises questions about County Counsel’s possible violation of California’s Rules of Professional Conduct, Rules 1.1(a), 1.1(c), 1.2(a), 1.3(a), 1.4(a), 1.4(b), 1.6(a), 1.7(a), 1.7(b), 1.7(d), and 2.1.

The hearing on the order

to show cause will be scheduled for September 17, 2026 at 8:30 am, concurrent with the hearing on Respondent's demurrer. County Counsel's response to the order to show cause, if it wishes to file one, is due on or before Thursday, September 3, 2026. Any reply to the response is due on or before Thursday, September 10, 2026. Courtesy copies of the response and reply shall to be emailed or delivered to Department 510 on the day they are due.

Disposition

Proposed intervenor Association

for Los Angeles Deputy Sheriffs' motion for leave to intervene is denied.

Proposed

intervenor Professional Peace Officers Association's motion for leave to intervene is denied.

The Court issues an order

to show cause, as outlined above, that will be heard on September 17, 2026 at 8:30 am in Department 510.

[1] The Court notes that ALADS filed two duplicate motions for leave to intervene on July 20 and July 21, 2026. Because the motions appear identical in content, the Court will evaluate only the July 21 motion (CRS # 322168256734). The duplicate July 20 motion for leave to intervene (CRS # 043827649474) will be taken off-calendar as moot.